RATIO / CASE READING SHEET

Daktaras v. Lithuania

European Court of Human Rights | ECHR-42095-98 | Lithuania | 2000

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Ratio reading aid, not an official case summary. Verify against the full judgment before use. No assessment of an individual case's prospects.

Charge

Four counts, including blackmail and inciting a victim to make false statements. The domestic court acquitted the applicant on two counts.

Paragraphs 10, 17

What was at stake

Domestic sentence: seven years and six months' imprisonment, a 15,000 litai fine and confiscation of property. The appeal altered his role in the blackmail offence but left the sentence unchanged. A prosecutor-requested term is not recorded.

Paragraphs 17, 19

Presumption of innocence

A prosecutor used language of proved guilt when refusing to discontinue a prosecution. The Court examined that language in its procedural context rather than treating the word alone as decisive.

Paragraphs 41-44

Court's conclusion

No Article 6(2) breach: the decision concerned whether there was enough evidence to proceed to trial. Separately, the Court found an Article 6(1) violation concerning tribunal impartiality.

Paragraph 45; operative provisions 1-2

For a lawyer reviewing a new matter

Read the whole decision, identify the procedural stage and compare it with public statements made outside the proceedings. A violation of another fair-trial guarantee is not a presumption-of-innocence success.

Paragraphs 43-45

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